

REQUEST FOR QUOTATIONS (RFQ)

Janitorial Services for GLERL in Muskegon, MI

(i) This is a request for quotations (RFQ) for commercial products or commercial services prepared in accordance with part 12. This announcement constitutes the only solicitation. Offers are being requested and a separate written solicitation will not be issued.

Solicitation number 1305M326Q0160 is issued as a request for quotations (RFQ), for Janitorial Services for GLERL in Muskegon, MI.

This acquisition is set-aside for small business concerns. The associated NAICS code is 561720. The small business size standard is \$22.0 Million.

This solicitation incorporates provisions and clauses by reference. The full text of provisions and clauses may be accessed electronically at www.acquisition.gov.

(ii) A list of line-item number(s) and items, quantities, and units of measure (including option(s), if applicable).

CLIN 0001 – Base Year

Services, non-personal, to provide all labor, equipment and materials (unless otherwise provided herein) necessary for Janitorial Services at the Great Lakes Environmental Research Laboratory in Muskegon, MI, in accordance with the Statement of Work. Period of Performance 06/01/2026 through 05/31/2027.

CLIN 1001 – Option Year 1

Services, non-personal, to provide all labor, equipment and materials (unless otherwise provided herein) necessary for Janitorial Services at the Great Lakes Environmental Research Laboratory in Muskegon, MI, in accordance with the Statement of Work. Period of Performance 06/01/2027 through 05/31/2028.

CLIN 2001 – Option Year 2

Services, non-personal, to provide all labor, equipment and materials (unless otherwise provided herein) necessary for Janitorial Services at the Great Lakes Environmental Research Laboratory in Muskegon, MI, in accordance with the Statement of Work. Period of Performance 06/01/2028 through 05/31/2029.

CLIN 3001 – Option Year 3

Services, non-personal, to provide all labor, equipment and materials (unless otherwise provided herein) necessary for Janitorial Services at the Great Lakes Environmental Research Laboratory in Muskegon, MI, in accordance with the Statement of Work. Period of Performance 06/01/2029 through 05/31/2030.

CLIN 4001 – Option Year 4

Services, non-personal, to provide all labor, equipment and materials (unless otherwise provided herein) necessary for Janitorial Services at the Great Lakes Environmental Research Laboratory in Muskegon, MI, in accordance with the Statement of Work. Period of Performance 06/01/2030 through 05/31/2031.

(iii) Description of requirements for the items to be acquired, including documentation supporting any brand name descriptions (see 12.102).

See attached Statement of Work which applies to Base Year and all Option Years 1 – 4, and Department of Labor Wage Rates: WD 2015-4861, Revision No. 28, dated 12/03/2025, which can be found on:
<https://sam.gov/content/wage-determinations>

INVOICES TO BE BILLED MONTHLY IN ARREARS VIA IPP. PROVIDE MONTHLY AND ANNUAL PRICING FOR EACH BASE AND OPTION YEAR. QUOTE PRICING MAY BE PROVIDED ON ATTACHED SF18 FORM OR ON COMPANY LETTERHEAD.

(iv) Date(s) and place(s) of delivery and acceptance and f.o.b. point (see part 47).

Period of performance shall be:

Base Year for a twelve month period 06/01/2026 through 05/31/2027.

Option Period 1 for a twelve month period 06/01/2027 through 05/31/2028.

Option Period 2 for a twelve month period 06/01/2028 through 05/31/2029.

Option Period 3 for a twelve month period 06/01/2029 through 05/31/2030.

Option Period 4 for a twelve month period 06/01/2030 through 05/31/2031.

The start date is an estimate and is subject to new funding approval processes. If there is a significant delay in awarding this contract, a shortened base year Period of Performance may be utilized or an updated quote may be requested with a new 12-month base year and corresponding option years.

Place of Performance is:

Great Lakes Environmental Research Laboratory

Lake Michigan Field Station

1431 Beach Street

Muskegon, MI 49441

(v) A list of solicitation provisions that apply to the acquisition (see 12.205(a)) can be found on the Request for Quote Form SF18 attachment.

(vi) A list of contract clauses that apply to the acquisition (see 12.205(b)) can be found on the Request for Quote Form SF18 attachment.

(vii) Quotes are required to be received via email to Jamie.Rosales@noaa.gov no later than 12:00 PM MST/MDT on 05/14/2026.

THE GOVERNMENT DOES NOT ACCEPT RESPONSIBILITY FOR NON-RECEIPT OF QUOTES. IT IS THE CONTRACTOR'S RESPONSIBILITY TO REQUEST AND RECEIVE A CONFIRMATION OF THE QUOTE RECEIPT.

(viii) Any other additional information required by 5.101(c).

Per NOAA Deviation 2025-02/03: System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations. Contracting officers will not consider those representations when making award decisions or enforce requirements. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

(End)

REQUEST FOR QUOTATION (THIS IS NOT AN ORDER)		THIS RFQ ☒ IS ☐ IS NOT A SMALL BUSINESS SET-ASIDE		PAGE 1 OF 44 PAGES	
1. REQUEST NUMBER 1305M326Q0160		2. DATE ISSUED 05/04/2026		3. REQUISITION/PURCHASE REQUEST NUMBER	
4. CERT. FOR NAT. DEF. UNDER BDSA REG. 2 AND/OR DMS REG. 1		RATING			
5a. ISSUED BY WAD-OAR 325 BROADWAY, SOU6 BOULDER CO 80305				6. DELIVER BY (Date)	
5b. FOR INFORMATION CALL (NO COLLECT CALLS)				7. DELIVERY ☒ FOB DESTINATION ☐ OTHER (See Schedule)	
NAME JAMIE ROSALES		TELEPHONE NUMBER AREA CODE NUMBER		9. DESTINATION	
8. TO:				a. NAME OF CONSIGNEE GREAT LAKES ENV RES LAB	
a. NAME		b. COMPANY		b. STREET ADDRESS LAKE MICHIGAN FIELD STATION 1431 BEACH STREET	
c. STREET ADDRESS				c. CITY MUSKEGON	
d. CITY		e. STATE		f. ZIP CODE	
		MI		49441	
10. PLEASE FURNISH QUOTATIONS TO THE ISSUING OFFICE IN BLOCK 5a ON OR BEFORE CLOSE OF BUSINESS (Date) 05/14/2026 1200 MD		IMPORTANT: This is a request for information and quotations furnished are not offers. If you are unable to quote, please so indicate on this form and return it to the address in Block 5a. This request does not commit the Government to pay any costs incurred in the preparation of the submission of this quotation or to contract for supplies or service. Supplies are of domestic origin unless otherwise indicated by quoter. Any representations and/or certifications attached to this Request for Quotation must be completed by the quoter.			
11. SCHEDULE (Include applicable Federal, State and local taxes)					
ITEM NUMBER (a)	SUPPLIES/SERVICES (b)	QUANTITY (c)	UNIT (d)	UNIT PRICE (e)	AMOUNT (f)
12. DISCOUNT FOR PROMPT PAYMENT		a. 10 CALENDAR DAYS (%)	b. 20 CALENDAR DAYS (%)	c. 30 CALENDAR DAYS (%)	d. CALENDAR DAYS NUMBER PERCENTAGE
NOTE: Additional provisions and representations ☐ are ☐ are not attached.					
13. NAME AND ADDRESS OF QUOTER			14. SIGNATURE OF PERSON AUTHORIZED TO SIGN QUOTATION		15. DATE OF QUOTATION
a. NAME OF QUOTER					
b. STREET ADDRESS			16. SIGNER		
c. COUNTY			a. NAME (Type or print)		b. TELEPHONE AREA CODE
d. CITY		e. STATE	f. ZIP CODE	c. TITLE (Type or print)	
				NUMBER	

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Representations, Certifications, and Other Statements of Bidders	40

Section II - Supplies or Services and Price/Costs

CLIN List

Item Number	Description	Quantity	Unit	Unit Price	Amount
0001	Base Year Services, non-personal, to provide all labor, equipment and materials (unless otherwise provided herein) necessary for Janitorial Services at the Great Lakes Environmental Research Laboratory in Muskegon, MI, in accordance with the Statement of Work. Period of Performance 06/01/2026 through 05/31/2027. Award Type: Firm-fixed-price Product/Service Code: S201				
1001	Option Year 1 Services, non-personal, to provide all labor, equipment and materials (unless otherwise provided herein) necessary for Janitorial Services at the Great Lakes Environmental Research Laboratory in Muskegon, MI, in accordance with the Statement of Work. Award Type: Firm-fixed-price (Option Line Item) Product/Service Code: S201 Period of Performance: 06/01/2027 to 05/31/2028				
2001	Option Year 2 Services, non-personal, to provide all labor, equipment and materials (unless otherwise provided herein) necessary for Janitorial Services at the Great Lakes Environmental Research Laboratory in Muskegon, MI, in accordance with the Statement of Work. Award Type: Firm-fixed-price (Option Line Item) Product/Service Code: S201 Period of Performance: 06/01/2028 to 05/31/2029				
3001					

Item Number	Description	Quantity	Unit	Unit Price	Amount
4001	Option Year 3 Services, non-personal, to provide all labor, equipment and materials (unless otherwise provided herein) necessary for Janitorial Services at the Great Lakes Environmental Research Laboratory in Muskegon, MI, in accordance with the Statement of Work.				
	Award Type: Firm-fixed-price				
	(Option Line Item)				
	Product/Service Code: S201 Period of Performance: 06/01/2029 to 05/31/2030				
	Option Year 4 Services, non-personal, to provide all labor, equipment and materials (unless otherwise provided herein) necessary for Janitorial Services at the Great Lakes Environmental Research Laboratory in Muskegon, MI, in accordance with the Statement of Work.				
	Award Type: Firm-fixed-price				
	(Option Line Item)				
	Product/Service Code: S201 Period of Performance: 06/01/2030 to 05/31/2031				

Section III - Description/Specifications

STATEMENT OF WORK SOW

National Oceanic and Atmospheric Administration (NOAA)
Great Lakes Environmental Research Laboratory (GLERL)
Lake Michigan Field Station (LMFS)
Muskegon, Michigan

BACKGROUND

NOAA GLERL's Lake Michigan Field Station (LMFS) is the home port for NOAA Great Lakes vessels, which operate throughout the Great Lakes. It is also home for the long-term observations research program on Lake Michigan.

The LMFS is strategically positioned on Lake Michigan to provide support to the local and regional community by further developing NOAA's role in freshwater ecology, ecosystems management, coastal management, and water-based commerce. This field station promotes long-term observations, field work, and process studies essential for understanding and developing future ecological services.

The LMFS comprises research laboratories, offices, and shop facilities for scientists, on-site boat captains, and management. Visiting scientists and various multi-disciplinary guests frequent the facility in support of GLERL and its partners.

SCOPE

The Contractor shall be responsible for satisfactorily managing and performing janitorial services at the GLERL LMFS in Muskegon, Michigan. The Contractor shall complete the specific and individual tasks as contained within this Statement of Work in order to enable the general public, official visitors, and staff to perform work in a safe, clean, and sanitary environment, reflective of a government facility.

There are three buildings at the LMFS and janitorial services are to be provided as follows:

Building 1 has three (3) levels and includes office space, a conference room and a basement. The main floor and second floor require cleaning; the basement does not require cleaning.

Building 2 has two (2) levels and the main floor comprises office space, a conference room, and a working tool shop/garage. The main floor requires cleaning; the second floor (upstairs) does not require cleaning.

Building 3 has one (1) level with office space, laboratory space and a garage. Cleaning services are to be performed in all of these spaces in this building.

The total cleanable space is approximately 8153 sq. ft. for all three buildings.

The Government will provide materials such as paper towels, toilet paper and hand soap.

The Contractor shall provide all machines and other materials needed to complete the work. The Contractor shall provide and use their own cleaning products. The cleaning products must be eco-friendly cleaning products and can be found on this EPA approved registered list [List N: Disinfectants for Use Against SARS-CoV-2 \(COVID-19\) | US EPA](#). The Contractor shall coordinate with the Government POC if cleaning supplies meeting these requirements are not obtainable or available.

The Contractor shall carefully complete all work, causing no damage to Government property or the worksite. If the Government determines that damage has been caused by the Contractor, the Contractor shall repair or replace to the Government's satisfaction at no additional cost to the Government

SPECIFIC TASKS

1. The Contractor shall satisfactorily manage and perform cleaning as specified herein. The Contractor shall work closely with the Government Point of Contact (POC) to coordinate an adjusted cleaning schedule if needed.
2. The Contractor's employees shall be subject to passing a background check and must complete a safety orientation training provided by GLERL's safety officer on site before performing any work.
3. The Contractor shall contact the Government POC immediately as soon as becomes aware that the regular cleaner is not able to provide services in accordance with the frequencies stated within this Statement of Work.
4. The Contractor shall provide a backup cleaner when the regular employee is unable to provide services in accordance with the frequencies stated within this Statement of Work.
5. For any services not provided or not provided to the Government POC's satisfaction, the Contractor may be required to return to the site and rectify or the Government POC may reject or require the Contractor to prorate the invoice for services missed.
6. The Contractor shall perform all work during business hours Monday through Friday, 8:00am-4:00pm and in coordination with the Government POC.
7. The Contractor shall perform cleaning year-round, every week, three (3) times per week.
8. The Contractor shall clean all rooms within the three (3) buildings as specified within this Statement of Work, including maintenance of floors, dusting of surfaces, and interior window cleaning.
9. The Contractor shall maintain three (3) washrooms in Building 1, two (2) washrooms in Building 2, and one (1) washroom in Building 3. Maintenance of washrooms includes cleaning and sanitizing all washroom floors, sinks, and toilet bowls and all other surfaces.
10. The Contractor shall maintain the conference rooms in Buildings 1 and 2 by cleaning them once a week and shall work closely with the Government POC to coordinate an adjusted cleaning

schedule to accommodate meeting and conference events. Maintenance of conference rooms includes floors, counter surfaces, tabletops, and interior windows. The Contractor shall work closely with the Government POC to coordinate an adjusted cleaning schedule to accommodate meeting and conference events.

11. The Contractor shall maintain entrance and common areas floors by sweeping and mopping.
12. The Contractor shall maintain an inventory of paper towels, toilet paper, and hand soap usage and in storage and notify the Government POC of inventory levels and when depletion requires replenishment.
13. The Contractor shall NOT clean the laboratory counter space because chemical interaction with cleaning products may cause issues.

TASK FREQUENCIES

The Contractor shall complete the cleaning in all buildings in accordance with the frequencies listed in this section.

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a. Three times per week

1. Sweep all uncarpeted floors including entryways.
2. Vacuum all carpeted floor areas. Only Building 1 has carpeted areas and they include three (3) offices on the first floor and four (4) offices on the second floor.
3. Empty waste baskets and containers. Remove all refuse to outside containers. Replace plastic liners when soiled. In case of leakage, damp wipe receptacles to remove all residue.
4. Wet mop washroom floors with disinfectant solutions. Wash and clean washroom sinks, showers and mirrors. Wash, clean and disinfect toilets and urinals. Spot clean toilet enclosures, baseboards, pipes, sills, and walls. Refill soap containers, paper towels, and toilet tissue dispensers, ensuring paper towels and toilet tissue are stocked and available.
5. Clean light switches, door handles, and door keypads with sanitized wipes.

b. Once a week

1. Damp mop all uncarpeted floors including corridors and entryways using a detergent solution ensuring excess moisture is removed from the mop. Ensure proper wood floor cleaning is practiced for the wood floors in Building 1, using a microfiber pad or microfiber string mop and, only occasionally or as needed, use a light detergent spray. If a vacuum is used on a hardwood floor, it must be acceptable for use on hardwood (soft bristle, etc.).
2. General Dusting--counter tops, cobwebs on walls, etc.

c. Once a month

1. Clean interior windows in all rooms in which Contractor is required to clean, ensuring there are not streaks.
2. Clean window blinds in all rooms in which Contractor is required to clean.

INVOICING

The Contractor shall bill on a monthly basis in arrears via IPP.gov. The Government POC will verify performance and hours worked prior on all invoices.

FEDERAL HOLIDAYS

The Contractor agrees to observe all Federal Holidays, and any other day off work designated by Federal Statute, Executive Order, or Presidential Proclamation.

New Year's Day	Birthday of Martin Luther King, Jr.
Washington's Birthday	Memorial Day
Juneteenth National Independence Day	Independence Day
Labor Day	Columbus Day
Veterans Day	Thanksgiving Day
Christmas Day	

If a holiday falls on a Saturday, for most Federal employees, the preceding Friday will be treated as a holiday for pay and leave purposes. (See 5 U.S.C. 6103(b).) If a holiday falls on a Sunday, for most Federal employees, the following Monday will be treated as a holiday for pay and leave purposes. (See Section 3(a) of Executive Order 11582, February 11, 1971.) See also our Federal Holidays – "In Lieu Of" Determination Fact Sheet at <https://www.opm.gov/policy-data-oversight/pay-leave/work-schedules/fact-sheets/Federal-Holidays-In-Lieu-Of-Determination>.

PLACE OF PERFORMANCE

Great Lakes Environmental Research Laboratory
 Lake Michigan Field Station
 1431 Beach Street
 Muskegon, MI 49441

PERFORMANCE PERIOD

Base Year for a twelve month period 06/01/2026 through 05/31/2027.
 Option Period 1 for a twelve month period 06/01/2027 through 05/31/2028.
 Option Period 2 for a twelve month period 06/01/2028 through 05/31/2029.
 Option Period 3 for a twelve month period 06/01/2029 through 05/31/2030.
 Option Period 4 for a twelve month period 06/01/2030 through 05/31/2031.

Section IX - Contract Clauses

Clauses Incorporated by Reference

Clause Number	Clause Title
52.203-17	Contractor Employee Whistleblower Rights. (NOV 2023)
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements. (JAN 2017)
52.204-7	System for Award Management-Registration. (NOV 2024) (Deviation JAN 2026)
52.204-9	Personal Identity Verification of Contractor Personnel. (JAN 2011)
52.204-13	System for Award Management-Maintenance. (OCT 2018) (Deviation JAN 2026)
52.208-9	Contractor Use of Mandatory Sources of Supply or Services. (MAY 2014) (Deviation JAN 2026)
52.209-2	Prohibition on Contracting With Inverted Domestic Corporations-Representation. (NOV 2015) (Deviation JAN 2026)
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (JAN 2025) (Deviation JAN 2026)
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (NOV 2015) (Deviation JAN 2026)
52.219-6	Notice of Total Small Business Set-Aside. (NOV 2020) (Deviation JAN 2026)
52.219-28	Postaward Small Business Program Rerepresentation. (JAN 2025) (Deviation JAN 2026)
52.222-3	Convict Labor. (JUN 2003)
52.222-19	Child Labor-Cooperation with Authorities and Remedies. (JAN 2025) (Deviation JAN 2026)
52.222-36	Equal Opportunity for Workers with Disabilities. (JUN 2020) (Deviation JAN 2026)
52.222-41	Service Contract Labor Standards. (AUG 2018)
52.222-50	Combating Trafficking in Persons. (OCT 2025) (Deviation JAN 2026)
52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026. (JAN 2022)
52.222-62	Paid Sick Leave Under Executive Order 13706. (JAN 2022)
52.223-1	Biobased Product Certification. (MAY 2024) (Deviation JAN 2026)
52.223-2	Reporting of Biobased Products Under Service and Construction Contracts. (MAY 2024) (Deviation JAN 2026)
52.223-3	Hazardous Material Identification and Safety Data. (FEB 2021) (Deviation JAN 2026)
52.223-5	Pollution Prevention and Right-to-Know Information. (MAY 2024)
52.223-23	Sustainable Products. (MAY 2024) (Deviation JAN 2026)
52.226-8	Encouraging Contractor Policies To Ban Text Messaging While Driving. (MAY 2024)

Clause Number	Clause Title
52.232-18	Availability of Funds. (APR 1984)
52.232-33	Payment by Electronic Funds Transfer - System for Award Management. (OCT 2018)
52.232-40	Providing Accelerated Payments to Small Business Subcontractors. (MAR 2023)
52.233-3	Protest after Award. (AUG 1996) (Deviation JAN 2026)
52.233-4	Applicable Law for Breach of Contract Claim. (OCT 2004) (Deviation JAN 2026)
52.237-2	Protection of Government Buildings, Equipment, and Vegetation. (APR 1984)
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation JAN 2026)
52.240-91	Security Prohibitions and Exclusions. (Deviation JAN 2026)
52.244-6	Subcontracts for Commercial Products and Commercial Services. (OCT 2025) (DEVIATION April 2026)
1352.201-70	Contracting Officer's Authority. (MAR 2010)
1352.209-73	Compliance with the laws. (APR 2010)
1352.209-74	Organizational conflict of interest. (APR 2010)

Standard Language UTILIZATION OF FEDCONNECT FOR CONTRACT ADMINISTRATION

The Department of Commerce will utilize the FedConnect® web portal in administering this award. The contractor must be registered in FedConnect® and have access to the FedConnect® website located at <https://www.fedconnect.net/Fedconnect/>. For assistance in registering or for other FedConnect® questions please call the FedConnect® Help Desk at (800) 899-6665 or email at support@fedconnect.net. There is no charge for registration in or use of FedConnect®.

NOAA Acquisition Manual 1330-52.222-70 NOAA SEXUAL ASSAULT AND SEXUAL HARASSMENT PREVENTION AND RESPONSE POLICY (MAY 2018)

In accordance with NOAA Administrative Order (NAO) 202-1106, NOAA Sexual Assault and Sexual Harassment Prevention and Response Policy, it is the policy of NOAA to maintain a work environment free from sexual assault and sexual harassment. NOAA prohibits sexual assault and sexual harassment by or of any employee, supervisor, manager, contractor, vendor, affiliate, or other individual with whom NOAA employees come into contact by the virtue of their work for NOAA.

(a) Definitions.

Contractor Employees - The term “contractor employees,” as used in this solicitation and contract language, refers to employees of the prime contractor or its subcontractors, affiliates, consultants, or team members.

Sexual Assault - The term sexual assault, as used in this solicitation and contract language, means any conduct proscribed by state or federal sexual abuse laws, including, but not limited to, those defined in chapter 109A of title 18 of the U.S. Code (sexual abuse), and assaults committed both by offenders who

are strangers to the victim and by offenders who are known or related by blood or marriage to the victim.

Sexual Harassment - As defined by the Equal Employment Opportunity Commission, sexual harassment is a form of sex discrimination that violates Title VII of the Civil Rights Act of 1964. It includes unwelcome sexual advances, requests for sexual favors, and other verbal, non-verbal, or physical conduct of a sexual nature when any of the following are true:

- Submission to such conduct is made either explicitly or implicitly as a term or condition of an individual's employment;
- Submission to or rejection of such conduct by an individual is used as the basis for employment decisions affecting such individual;
- The conduct unreasonably interferes with an individual's work performance or creates an intimidating, hostile, or offensive working environment.

The main characteristics of sexual harassment are that the harasser's conduct is targeted against the recipient's sex, gender identity, or sexual orientation, and is unwelcome to the recipient. It may include, but is not limited to: offensive jokes, slurs, epithets or name calling, undue attention, physical assaults or threats, unwelcome touching or contact, intimidation, ridicule or mockery, insults or put-downs, constant or unwelcome questions about an individual's identity, and offensive objects or pictures.

(b) Requirements.

1. It is the responsibility of the contractor to ensure that contractor employees maintain the highest degree of conduct and standards in performance of the contract. In support of this, NOAA urges its contractors to develop and enforce comprehensive company policy addressing sexual assault and sexual harassment.
2. The contractor shall include wording substantially the same as this solicitation and contract language in every subcontract so that it is binding upon each subcontractor.
3. If a contractor employee observes or is the object of sexual assault or sexual harassment, he or she is highly encouraged to report the matter, as soon as possible, to their immediate supervisor, the COR, subset of the COR (e.g. Task Manager or Assistant COR), or contracting officer (CO) if a COR is not assigned to the contract. The contract employee may also contact the NOAA Civil Rights Office to obtain guidance on reporting instances of sexual assault or sexual harassment. If deemed necessary, the contractor employee may also report such instances to local law enforcement. In the case where the incident occurs while performing at a remote location, such as at sea or in the field (at a field camp or other isolated location) where the above referenced individuals are unavailable, the contractor employee should follow the reporting procedure set forth in NAO 202-1106, Section 6.07, Reporting from Remote Locations.
4. Swift reporting allows NOAA and the contractor to take the appropriate measures to ensure that offensive behavior stops and the complainants' needs are addressed.

5. The COR (if assigned), CO, and contractor, where applicable, will work together to ensure appropriate action is taken in accordance with applicable laws and regulations, contract terms and conditions, and the contractor's written policy (where applicable).

6. The contractor shall provide all contractor employees assigned to perform under this contract with mandatory sexual assault and sexual harassment prevention and response training in compliance with the requirements of NAO 202-1106, Section 5, Prevention Training and Awareness, as part of their initial in-processing and on an annual basis thereafter. The initial training shall be completed within [] business days (30 unless a different number is inserted) of contract award or the date a contractor employee is assigned to perform under the contract, as applicable.

Evidence of initial training by name and date completed for each contractor employee, shall be submitted to the COR or contracting officer (if no COR assigned) within 10 business days of completion.

Evidence of annual training by name and date completed for each contractor employee shall be submitted to the COR or contracting officer (if no COR assigned) no later than March 1st of each calendar year of contract performance.

7. The mandatory sexual assault and sexual harassment training provided by the contractor shall include the required elements set forth by NOAA's Workplace Violence Program Manager. A link to the website including the required elements of the training is provided at <https://www.noaa.gov/organization/acquisition-grants/noaa-workplace-harassment-training-for-contractors-and-financial>. The website will also provide training materials and resources to assist the contractor in conducting the training. The contractor may provide training that solely addresses the NOAA required elements or may supplement existing company sexual assault and sexual harassment training in a manner that ensures all of the elements are adequately addressed.

8. The required elements of the training and resources available to the contractor for the training may be updated by NOAA periodically. The contractor is responsible for monitoring the website and incorporating any changes to the NOAA required elements into the contractor provided training.

9. NOAA's Workplace Violence Program Manager, COR, or CO may periodically review the contractor's training outline to ensure all required elements are included and, if necessary, any appropriate adjustments are made to the training by the contractor.

10. Contractor employees performing on assignments in a remote location, such as at a field camp or other isolated locations, are subject to receiving the same briefing on the parameters of the order provided to NOAA employees as set forth in Section 6 of NAO 202-1106.

11. The contractor shall provide a copy of this solicitation and contract language and NAO 202-1106 to contractor employees.

(c) Sexual Assault/Sexual Harassment (SASH) Helpline.

For NOAA employees, affiliates, and contractors who have experienced sexual assault or sexual harassment, NOAA has established the NOAA Sexual Assault/Sexual Harassment (SASH) helpline. This helpline is designed to provide crisis intervention, referrals, and emotional support to those who are victims and/or survivors of sexual harassment or sexual assault within the workplace. Contractor

employees may use the helpline to receive live, confidential, one-on-one support in an occurrence of sexual harassment or assault by a Federal Government employee.

All services are anonymous, secure, and available worldwide, 24 hours a day, seven days a week. The NOAA SASH helpline is accessible through a variety of channels, including:

- Phone: 1-866-288-6558
- Website & Online Chat: <https://www.noasashhelpline.org/>
- Mobile App: NOAA SASH Helpline (available via iOS and Android App Stores)
- Text: (202) 335-0265

(d) Confidentiality.

Any party receiving information from the filing of a complaint alleging sexual assault or sexual harassment, or while performing an investigation into such a complaint, shall keep the information confidential. "Confidentiality" means that the information shall only be shared with others who have a need to know the information to conduct their official duties.

(e) Remedies.

In addition to other remedies available to the Government, contractor employee violations of Federal requirements (e.g., law, statutes, executive orders, code, rules, regulations) applicable to sexual assault and sexual harassment and/or failure to complete the mandatory training set forth in this solicitation and contract language, may result in:

1. Requiring the contractor to remove a contractor employee or employees from the performance of the contract;
2. Requiring the contractor to terminate a subcontract;
3. Suspension of contract payments until the Contractor has taken appropriate remedial action;
4. Termination of the contract for default or cause, in accordance with the termination clause of this contract;
5. Suspension or debarment; or
6. Other appropriate action.

(End of solicitation and contract language)

NOAA Acquisition Manual 1330-52.232-71 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS (FEB 2023)

The Contractor must submit payment requests electronically through the U.S. Department of the Treasury's Invoice Processing Platform System (IPP). The Contractor must use the IPP website to register, access, and submit payment requests. The IPP website address is <https://www.ipp.gov>.

"Payment request" means any request for contract financing payment or invoice payment to the Contractor. To be considered proper, invoices must be prepared in accordance with, and contain all elements specified in, the contract payment clause (e.g., FAR 52.212-4(g), FAR 52.232-25(a)(3), FAR 52.232-26(a)(2), FAR 52.232-27(a)(2)).

The Contractor must include the following documents as attachments to payment requests submitted through the IPP: [Contracting Officer list required invoice attachment(s); none if left blank].

If the Contractor is unable to comply with the requirement to submit payment requests through the IPP due to a threat to national security; a matter of unusual or compelling urgency; or because the political, financial, or communications infrastructure of a foreign country does not support access to the IPP, the Contractor must request an exception in writing. Contact the Contracting Officer for more information about requesting an exception.

(End of solicitation and contract language)

NOAA Acquisition Manual 1330-52.237-70 CONTRACTOR COMMUNICATIONS

(a) A contractor employee shall be identified both by the individual's name and the contractor's name when:

- Included in NOAA's locator, and
- When submitting any type of electronic correspondence to any NOAA employee or stakeholder.

(b) Any written correspondence from a contractor or any contractor employee shall be printed on company/organization letterhead or otherwise clearly identify the sender as an employee of the company or organization and shall identify the contract number.

(c) Contractors and/or contractor employees shall clearly identify themselves as such in any verbal communications, whether in informal discussion or a formal meeting.

(End of solicitation and contract language)

NOAA Acquisition Manual 1330-52.237-71 NOAA GOVERNMENT-CONTRACTOR RELATIONS - NON-PERSONAL SERVICES CONTRACT (SEPT 2017)

(a) The Government and the contractor understand and agree that the services to be delivered under this contract by the contractor to the Government are non-personal services as defined in FAR Part 37, Service Contracting, and the parties recognize and agree that no employer-employee relationship exists or will exist under the contract between the Government and the contractor's personnel. It is, therefore, in the best interest of the Government to afford both parties an understanding of their respective obligations.

(b) Contractor personnel under this contract shall not:

1. Be placed in a position where they are under relatively continuous supervision and control of a Government employee.

2. Be placed in a position of command, supervision, administration, or control over Government personnel or over personnel of other contractors performing under other NOAA contracts.

(c) The services to be performed under this contract do not require the contractor or the contractor's personnel to exercise personal judgment and discretion on behalf of the Government. Rather, the contractor's personnel will act and exercise personal judgment and discretion on behalf of the contractor.

(d) Rules, regulations, directives, and requirements that are issued by the Department of Commerce and NOAA under its responsibility for good order, administration, and security are applicable to all personnel who enter the Government installation and facilities, who are provided access to Government systems, or who travel on Government transportation. This is not to be construed or interpreted to establish any degree of Government control that is inconsistent with a non-personal services contract.

(e) Both parties are responsible for monitoring contract activities for indications of improper employee-employer relationships during performance. In the event a situation or occurrence takes place inconsistent with this contract language, the following applies:

1. The contractor shall notify the contracting officer in writing within 5 business days from the date of any situation or occurrence where the contractor considers specific contract activity to be inconsistent with the intent of this contract language. The notice must include the date, nature and circumstance of the situation or occurrence, the name, function and activity of each Government employee or contractor employee involved or knowledgeable about the situation or occurrence, provide any documents or the substance of any oral communications related to the activity, and an estimated date by which the Government is recommended to respond to the notice in order to minimize cost, delay, or disruption of performance.

2. The contracting officer will review the information provided by the contractor, obtain additional information (if needed), and respond in writing as soon as practicable after receipt of the notification from the contractor. The contracting officer's response will provide a decision on whether the contracting officer determines the situation or occurrence to be inconsistent with the intent of this contract language and, if deemed necessary, will specify any corrective action(s) to be taken in order to resolve the issue.

(End of solicitation and contract language)

NOAA Acquisition Manual 1330-52.237-72 CONTRACTOR ACCESS TO NOAA FACILITIES (SEPT 2017)

(a)

1. The performance of this contract requires employees of the prime contractor or its subcontractors, affiliates, consultants, or team members ("contractor employees") to have access to and to the extent authorized, mobility within, a NOAA facility.

2. NOAA may close and or otherwise deny contractor employees access to a NOAA facility for a portion of a business day or longer for various reasons including, but not limited, to the following events:

- i. Federal public holidays for Federal employees in accordance with 5 U.S.C. 6103;

ii. Fires, floods, earthquakes, and unusually severe weather, including but not limited to snow storms, tornadoes, and hurricanes;

iii. Occupational safety or health hazards;

iv. Lapse in Appropriations; or

v. Federal Statute, Executive Order, Presidential Proclamation, or any other unforeseen reason.

3. In such events, the contractor employees may be denied access to a NOAA facility that is ordinarily available for the contractor to perform work or make delivery, as required by the contract.

(b) In all instances where contractors are denied access or required to vacate a NOAA facility, in part or in whole, the contractor shall be responsible to ensure contractor personnel working under the contract comply. If the circumstances permit, the contracting officer will provide direction to the contractor, either directly or through the COR, which could include continuing on-site performance during the NOAA facility closure period; however, if Government oversight is required and is not available, on-site performance shall not be allowed. In the absence of such direction, the contractor shall exercise sound judgment to minimize unnecessary contract costs and performance impacts, for example, performing required work off- site if possible or reassigning personnel to other activities if appropriate.

(c) The contractor shall be responsible for monitoring the Office of Personnel Management at opm.gov, the local radio, television stations, NOAA web sites, and other communication channels. Once the facility is accessible, the contractor shall resume contract performance as required by the contract.

(d) For the period that NOAA facilities were not accessible to contractors who required access in order to perform the services, the contracting officer may—

1. Adjust the contract performance or delivery schedule for a period equivalent to the period the NOAA facility was not accessible;

2. Forego the work; or

3. Reschedule the work by mutual agreement of the parties.

(e) Notification procedures of a NOAA facility closure, including contractor denial of access, are as follows:

1. The contractor shall be responsible for notification of its employees of the NOAA facility closure to include denial of access to the NOAA facility. The dismissal of NOAA employees in accordance with statute and regulations providing for such dismissals shall not, in itself, equate to a NOAA facility closure in which contractors are denied access. Moreover, the leave status of NOAA employees shall not be conveyed or imputed to contractor personnel. Accordingly, unless a NOAA facility is closed and the contractor is denied access to the facility, the contractor shall continue performance in accordance with the contract.

2. Access to Government facilities and resources, including equipment and systems, will be limited and personnel necessary to administer contract performance may not be available. Generally, supply and service contracts that are funded beyond the date of the lapse in appropriation and do not require

access to Government facilities, active administration by Government personnel or the use of Government resources in a manner that would cause the Government to incur additional obligations during the lapse in appropriation may continue. If a delivery date for a contract falls during the period of a lapse in appropriations, Government personnel may not be available to receive delivery. Contractors are directed to consult with a contracting officer before attempting to make a delivery. Contracting officers will be available throughout the lapse in appropriation period to provide guidance.

Once OMB guidance is given, CORs, in consultation with the contracting officer, will notify those contractors that are deemed by the Program Office to be performing excepted work and identify the contractor personnel requiring access to NOAA facilities. CORs will also coordinate directly with facility management or physical security personnel at respective locations to ensure that the names of contractor personnel requiring access to Government facilities during the lapse in appropriations are provided to physical security personnel.

Contractors who are not designated as performing excepted work are not allowed access to Government facilities or to utilize Government resources in a manner that would incur any additional obligation of funding on behalf of the Government during the lapse in appropriation.

3. Unless otherwise specified within the contract award, contractors requiring access to NOAA facilities outside normal business hours or outside the normal workweek shall submit a written request in writing through the COR to the contracting officer. The written request shall provide justification supporting the required access and be submitted [] hours/days (contracting officer insert number of days. If blank, 72 hours applies) before access to the NOAA facility is needed.

(End of solicitation and contract language)

**RFO 52.212-4 Terms and Conditions-Commercial Products and Commercial Services. (NOV 2023)
(Deviation JAN 2026)**

(a) Definitions. The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference.

(b) *Inspection/Acceptance*. The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post acceptance rights-

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(c) *Assignment*. The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution,

including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (*e.g.*, use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(d) *Changes*. Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(e) *Disputes*. This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal, or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause FAR 52.233-1, Disputes, which is incorporated in this contract by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(f) *Excusable delays*. The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence. Examples of occurrences include acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. When an excusable delay occurs, the Contractor shall-

- (1) Notify the Contracting Officer in writing as soon as possible;
- (2) Remedy the delay as quickly as possible; and
- (3) Notify the Contracting Officer when the occurrence is over.

(g) *Invoice*. The Government will handle invoices according to the Prompt Payment Act (31 U.S.C. 3903) and 5 CFR part 1315. The Contractor shall submit invoices to the address designated in the contract to receive invoices. An invoice must include the information required by 5 CFR part 1315.9(b).

(h) *Patent indemnity*. The Contractor shall indemnify the Government and its officers, employees, and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark, or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) *Payment-*

(1) *Items accepted*. Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) *Prompt payment*. The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.

(3) *Discount.* In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(4) *Overpayments.* If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall-

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-

(A) Circumstances of the overpayment (*e.g.*, duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable;

(D) Contractor point of contact; and

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(5) *Interest.*(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) *Final decisions.* The Contracting Officer will issue a final decision as required by FAR part 33 if-

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see FAR part 32).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a termination for cause.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures for interest credits prescribed in FAR part 32 in effect on the date of this contract.

(j) *Risk of loss.* Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon-

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) *Taxes.* The contract price includes all applicable Federal, State, and local taxes and duties.

(l) *Termination for the Government's convenience.* The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not

give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) *Termination for cause.* The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) *Title.* Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) *Warranty.* The Contractor warrants and implies that the items delivered under this contract are merchantable and fit for use for the particular purpose described in this contract.

(p) *Limitation of liability.* Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) *Compliance with laws unique to Government contracts.* The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Government-financed air transportation; and 41 U.S.C. chapter 21 relating to procurement integrity.

(r) *Order of precedence.* Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

- (1) The schedule of supplies/services;
- (2) The Disputes, Payments, Invoice, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;
- (3) Other contract clauses incorporated in the solicitation or contract;
- (4) Addenda to this solicitation or contract;
- (5) Solicitation provisions incorporated in the solicitation;
- (6) Other paragraphs of this clause;
- (7) Other documents, exhibits, and attachments; and
- (8) The specification.

(s) Unauthorized obligations.

(1) Except as stated in paragraph (s)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government-authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (s)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(t) Comptroller General examination of record. This paragraph applies if this contract was awarded using other than sealed bid procedures and is in excess of the simplified acquisition threshold on the date of award of this contract.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices, at all reasonable times, the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR part 4, longer period required by statute, or periods specified in other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This clause does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(u) *Incorporation by reference.* The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

RFO 52.217-8 Option To Extend Services. (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor at any point prior to contract award.

(End of clause)

Inclusion of FAR clause 52.217-8, Option to Extend Services, in the solicitation and resultant contract is for use by the Government as outlined at FAR 37.111, Extension of Services. The option will be exercised as needed at any time during the life of the contract using the rates applicable at the time of exercise.

RFO 52.217-9 Option To Extend the Term of the Contract. (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 5 years.

(End of clause)

RFO 52.222-42 Statement of Equivalent Rates for Federal Hires. (MAY 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C. 5341 or 5332.

This Statement is for Information Only: It Is Not A Wage Determination

Employee class Monetary wage - Fringe benefits

11150 - Janitor, \$18.15 - \$21.17, 30%

(End of clause)

RFO 52.222-90 Addressing DEI Discrimination by Federal Contractors (APR 2026) (DEVIATION April 2026)

(a) *Definitions.* As used in this clause-

Program participation means membership or participation in, or access or admission to: training, mentoring, or leadership development programs; educational opportunities; clubs; associations; or similar opportunities that are sponsored or established by the contractor or subcontractor.

Racially discriminatory diversity, equity, and inclusion (DEI) activities means disparate treatment based on race or ethnicity in the recruitment, employment (e.g., hiring, promotions), contracting (e.g., vendor agreements), program participation, or allocation or deployment of an entity's resources.

(b) In connection with the performance of work under this contract, the Contractor agrees as follows:

- (1) The Contractor will not engage in any racially discriminatory DEI activities;
- (2) The Contractor will furnish all information and reports, including providing access to books, records, and accounts, as required by the Contracting Officer, for purposes of ascertaining compliance with this clause;
- (3) In the event of the Contractor's or a subcontractor's noncompliance with this clause, this contract may be canceled, terminated, or suspended in whole or in part, and the Contractor or subcontractor may be declared ineligible for further Government contracts;
- (4) The Contractor will report any subcontractor's known or reasonably knowable conduct that may violate this clause to the Contracting Officer and take any appropriate remedial actions directed by the Contracting Officer; and
- (5) The Contractor will inform the Contracting Officer if a subcontractor sues the Contractor and the suit puts at issue, in any way, the validity of this clause.
- (6) The Contractor recognizes that compliance with the requirements of this clause are material to the Government's payment decisions for purposes of 31 U.S.C. 3729(b)(4).

(c) The Contractor must include the substance of this clause, including this paragraph (c), in subcontracts at any tier, including those for commercial products and commercial services, except those where the place of delivery or performance is outside the United States.

(End of clause)

RFO 52.252-2 Clauses Incorporated by Reference. (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):
<https://www.acquisition.gov/browse/index/far>

(End of clause)

RFO 52.252-6 Authorized Deviations in Clauses. (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of (DEVIATION) after the date of the clause.

(b) The use in this solicitation or contract of any Commerce Acquisition Regulation (48 CFR 1352) clause with an authorized deviation is indicated by the addition of (DEVIATION) after the name of the regulation.

(End of clause)

Section X - List of Attachments

Attachment Number	Title

SAM Wage Determination No.: 2015-4861 Revision No.: 28

"REGISTER OF WAGE DETERMINATIONS UNDER | U.S. DEPARTMENT OF LABOR
 THE SERVICE CONTRACT ACT | EMPLOYMENT STANDARDS ADMINISTRATION
 By direction of the Secretary of Labor | WAGE AND HOUR DIVISION
 | WASHINGTON D.C. 20210

| Wage Determination No.: 2015-4861
 Daniel W. Simms Division of | Revision No.: 28
 Director Wage Determinations | Date Of Last Revision: 12/03/2025

State: Michigan

Area: Michigan County of Muskegon

****Fringe Benefits Required Follow the Occupational Listing****

OCCUPATION CODE - TITLE	FOOTNOTE	RATE
01000 - Administrative Support And Clerical Occupations		
01011 - Accounting Clerk I		17.49
01012 - Accounting Clerk II		19.63
01013 - Accounting Clerk III		21.96
01020 - Administrative Assistant		29.85
01035 - Court Reporter		20.86
01041 - Customer Service Representative I		15.81
01042 - Customer Service Representative II		17.26
01043 - Customer Service Representative III		19.37
01051 - Data Entry Operator I		16.63
01052 - Data Entry Operator II		18.15
01060 - Dispatcher, Motor Vehicle		21.94
01070 - Document Preparation Clerk		16.61
01090 - Duplicating Machine Operator		16.61
01111 - General Clerk I		15.65
01112 - General Clerk II		17.08
01113 - General Clerk III		19.17

01120 - Housing Referral Assistant	23.25
01141 - Messenger Courier	13.53
01191 - Order Clerk I	17.75
01192 - Order Clerk II	19.38
01261 - Personnel Assistant (Employment) I	18.65
01262 - Personnel Assistant (Employment) II	20.86
01263 - Personnel Assistant (Employment) III	23.25
01270 - Production Control Clerk	29.14
01290 - Rental Clerk	16.78
01300 - Scheduler, Maintenance	18.65
01311 - Secretary I	18.65
01312 - Secretary II	20.86
01313 - Secretary III	23.25
01320 - Service Order Dispatcher	19.61
01410 - Supply Technician	29.85
01420 - Survey Worker	20.86
01460 - Switchboard Operator/Receptionist	17.06
01531 - Travel Clerk I	16.61
01532 - Travel Clerk II	18.65
01533 - Travel Clerk III	20.70
01611 - Word Processor I	16.61
01612 - Word Processor II	18.65
01613 - Word Processor III	20.86
05000 - Automotive Service Occupations	
05005 - Automobile Body Repairer, Fiberglass	22.64
05010 - Automotive Electrician	21.25
05040 - Automotive Glass Installer	20.44
05070 - Automotive Worker	20.44
05110 - Mobile Equipment Servicer	19.14
05130 - Motor Equipment Metal Mechanic	22.33
05160 - Motor Equipment Metal Worker	20.44
05190 - Motor Vehicle Mechanic	22.33
05220 - Motor Vehicle Mechanic Helper	18.49
05250 - Motor Vehicle Upholstery Worker	19.79
05280 - Motor Vehicle Wrecker	20.44
05310 - Painter, Automotive	23.21
05340 - Radiator Repair Specialist	20.44
05370 - Tire Repairer	17.81
05400 - Transmission Repair Specialist	22.33
07000 - Food Preparation And Service Occupations	
07010 - Baker	16.63
07041 - Cook I	16.60
07042 - Cook II	18.60
07070 - Dishwasher	13.36
07130 - Food Service Worker	14.03
07210 - Meat Cutter	18.28
07260 - Waiter/Waitress	16.81

09000 - Furniture Maintenance And Repair Occupations	
09010 - Electrostatic Spray Painter	22.18
09040 - Furniture Handler	15.75
09080 - Furniture Refinisher	22.18
09090 - Furniture Refinisher Helper	17.86
09110 - Furniture Repairer, Minor	19.81
09130 - Upholsterer	22.18
11000 - General Services And Support Occupations	
11030 - Cleaner, Vehicles	15.36
11060 - Elevator Operator	16.36
11090 - Gardener	21.03
11122 - Housekeeping Aide	16.36
11150 - Janitor	16.36
11210 - Laborer, Grounds Maintenance	17.52
11240 - Maid or Houseman	15.32
11260 - Pruner	16.39
11270 - Tractor Operator	19.89
11330 - Trail Maintenance Worker	17.52
11360 - Window Cleaner	17.49
12000 - Health Occupations	
12010 - Ambulance Driver	25.16
12011 - Breath Alcohol Technician	25.16
12012 - Certified Occupational Therapist Assistant	33.78
12015 - Certified Physical Therapist Assistant	28.88
12020 - Dental Assistant	23.90
12025 - Dental Hygienist	37.78
12030 - EKG Technician	35.52
12035 - Electroneurodiagnostic Technologist	35.52
12040 - Emergency Medical Technician	25.16
12071 - Licensed Practical Nurse I	22.48
12072 - Licensed Practical Nurse II	25.16
12073 - Licensed Practical Nurse III	28.05
12100 - Medical Assistant	19.80
12130 - Medical Laboratory Technician	22.94
12160 - Medical Record Clerk	18.58
12190 - Medical Record Technician	20.78
12195 - Medical Transcriptionist	22.48
12210 - Nuclear Medicine Technologist	55.27
12221 - Nursing Assistant I	13.28
12222 - Nursing Assistant II	14.95
12223 - Nursing Assistant III	16.31
12224 - Nursing Assistant IV	18.30
12235 - Optical Dispenser	22.13
12236 - Optical Technician	22.48
12250 - Pharmacy Technician	20.79
12280 - Phlebotomist	22.48
12305 - Radiologic Technologist	37.16

12311 - Registered Nurse I	26.04	
12312 - Registered Nurse II	31.84	
12313 - Registered Nurse II, Specialist	31.84	
12314 - Registered Nurse III	38.52	
12315 - Registered Nurse III, Anesthetist	38.52	
12316 - Registered Nurse IV	46.18	
12317 - Scheduler (Drug and Alcohol Testing)	31.16	
12320 - Substance Abuse Treatment Counselor	29.94	
13000 - Information And Arts Occupations		
13011 - Exhibits Specialist I	19.96	
13012 - Exhibits Specialist II	24.72	
13013 - Exhibits Specialist III	30.23	
13041 - Illustrator I	19.96	
13042 - Illustrator II	24.72	
13043 - Illustrator III	30.23	
13047 - Librarian	27.38	
13050 - Library Aide/Clerk	14.95	
13054 - Library Information Technology Systems Administrator	24.72	
13058 - Library Technician	20.35	
13061 - Media Specialist I	17.84	
13062 - Media Specialist II	19.96	
13063 - Media Specialist III	22.24	
13071 - Photographer I	17.84	
13072 - Photographer II	19.96	
13073 - Photographer III	24.72	
13074 - Photographer IV	30.23	
13075 - Photographer V	36.58	
13090 - Technical Order Library Clerk	18.77	
13110 - Video Teleconference Technician	17.84	
14000 - Information Technology Occupations		
14041 - Computer Operator I	16.22	
14042 - Computer Operator II	18.14	
14043 - Computer Operator III	20.23	
14044 - Computer Operator IV	22.49	
14045 - Computer Operator V	24.89	
14071 - Computer Programmer I	(see 1)	20.78
14072 - Computer Programmer II	(see 1)	25.74
14073 - Computer Programmer III	(see 1)	
14074 - Computer Programmer IV	(see 1)	
14101 - Computer Systems Analyst I	(see 1)	
14102 - Computer Systems Analyst II	(see 1)	
14103 - Computer Systems Analyst III	(see 1)	
14150 - Peripheral Equipment Operator	16.22	
14160 - Personal Computer Support Technician	22.49	
14170 - System Support Specialist	24.89	
15000 - Instructional Occupations		

15010 - Aircrew Training Devices Instructor (Non-Rated)	33.21
15020 - Aircrew Training Devices Instructor (Rated)	40.15
15030 - Air Crew Training Devices Instructor (Pilot)	48.06
15050 - Computer Based Training Specialist / Instructor	33.21
15060 - Educational Technologist	41.95
15070 - Flight Instructor (Pilot)	48.06
15080 - Graphic Artist	23.15
15085 - Maintenance Test Pilot, Fixed, Jet/Prop	48.06
15086 - Maintenance Test Pilot, Rotary Wing	48.06
15088 - Non-Maintenance Test/Co-Pilot	48.06
15090 - Technical Instructor	23.14
15095 - Technical Instructor/Course Developer	28.31
15110 - Test Proctor	18.68
15120 - Tutor	18.68
16000 - Laundry, Dry-Cleaning, Pressing And Related Occupations	
16010 - Assembler	13.62
16030 - Counter Attendant	13.62
16040 - Dry Cleaner	17.11
16070 - Finisher, Flatwork, Machine	13.62
16090 - Presser, Hand	13.62
16110 - Presser, Machine, Drycleaning	13.62
16130 - Presser, Machine, Shirts	13.62
16160 - Presser, Machine, Wearing Apparel, Laundry	13.62
16190 - Sewing Machine Operator	18.56
16220 - Tailor	19.96
16250 - Washer, Machine	14.43
19000 - Machine Tool Operation And Repair Occupations	
19010 - Machine-Tool Operator (Tool Room)	23.92
19040 - Tool And Die Maker	28.81
21000 - Materials Handling And Packing Occupations	
21020 - Forklift Operator	19.60
21030 - Material Coordinator	29.14
21040 - Material Expediter	29.14
21050 - Material Handling Laborer	17.24
21071 - Order Filler	15.53
21080 - Production Line Worker (Food Processing)	19.60
21110 - Shipping Packer	20.39
21130 - Shipping/Receiving Clerk	20.39
21140 - Store Worker I	18.40
21150 - Stock Clerk	22.63
21210 - Tools And Parts Attendant	19.60
21410 - Warehouse Specialist	19.60
23000 - Mechanics And Maintenance And Repair Occupations	
23010 - Aerospace Structural Welder	30.06
23019 - Aircraft Logs and Records Technician	24.35
23021 - Aircraft Mechanic I	28.64
23022 - Aircraft Mechanic II	30.06

23023 - Aircraft Mechanic III	31.52	
23040 - Aircraft Mechanic Helper	21.79	
23050 - Aircraft, Painter	27.46	
23060 - Aircraft Servicer	24.35	
23070 - Aircraft Survival Flight Equipment Technician		27.46
23080 - Aircraft Worker	25.82	
23091 - Aircrew Life Support Equipment (ALSE) Mechanic I		25.82
23092 - Aircrew Life Support Equipment (ALSE) Mechanic II		28.64
23110 - Appliance Mechanic	27.25	
23120 - Bicycle Repairer	23.04	
23125 - Cable Splicer	37.15	
23130 - Carpenter, Maintenance	25.22	
23140 - Carpet Layer	25.82	
23160 - Electrician, Maintenance	30.68	
23181 - Electronics Technician Maintenance I		25.82
23182 - Electronics Technician Maintenance II		27.25
23183 - Electronics Technician Maintenance III		28.64
23260 - Fabric Worker	24.35	
23290 - Fire Alarm System Mechanic		28.64
23310 - Fire Extinguisher Repairer	23.04	
23311 - Fuel Distribution System Mechanic		28.64
23312 - Fuel Distribution System Operator		23.04
23370 - General Maintenance Worker		21.58
23380 - Ground Support Equipment Mechanic		28.64
23381 - Ground Support Equipment Servicer		24.35
23382 - Ground Support Equipment Worker		25.82
23391 - Gunsmith I	23.04	
23392 - Gunsmith II	25.82	
23393 - Gunsmith III	28.64	
23410 - Heating, Ventilation And Air-Conditioning Mechanic		25.91
23411 - Heating, Ventilation And Air Contidioning Mechanic (Research Facility)		27.08
23430 - Heavy Equipment Mechanic	27.77	
23440 - Heavy Equipment Operator	27.99	
23460 - Instrument Mechanic	28.64	
23465 - Laboratory/Shelter Mechanic	27.25	
23470 - Laborer	17.24	
23510 - Locksmith	27.25	
23530 - Machinery Maintenance Mechanic		29.92
23550 - Machinist, Maintenance	22.50	
23580 - Maintenance Trades Helper	21.79	
23591 - Metrology Technician I	28.64	
23592 - Metrology Technician II	30.06	
23593 - Metrology Technician III	31.52	

23640 - Millwright	29.07	
23710 - Office Appliance Repairer	27.25	
23760 - Painter, Maintenance	22.41	
23790 - Pipefitter, Maintenance	35.80	
23810 - Plumber, Maintenance	34.07	
23820 - Pneudraulic Systems Mechanic	28.64	
23850 - Rigger	28.64	
23870 - Scale Mechanic	25.82	
23890 - Sheet-Metal Worker, Maintenance	37.90	
23910 - Small Engine Mechanic	25.82	
23931 - Telecommunications Mechanic I	27.69	
23932 - Telecommunications Mechanic II	29.07	
23950 - Telephone Lineman	28.64	
23960 - Welder, Combination, Maintenance	22.68	
23965 - Well Driller	28.64	
23970 - Woodcraft Worker	28.64	
23980 - Woodworker	23.04	
24000 - Personal Needs Occupations		
24550 - Case Manager	17.90	
24570 - Child Care Attendant	13.63	
24580 - Child Care Center Clerk	16.99	
24610 - Chore Aide	16.56	
24620 - Family Readiness And Support Services Coordinator	17.90	
24630 - Homemaker	17.90	
25000 - Plant And System Operations Occupations		
25010 - Boiler Tender	28.70	
25040 - Sewage Plant Operator	27.31	
25070 - Stationary Engineer	28.70	
25190 - Ventilation Equipment Tender	21.84	
25210 - Water Treatment Plant Operator	27.31	
27000 - Protective Service Occupations		
27004 - Alarm Monitor	20.61	
27007 - Baggage Inspector	16.09	
27008 - Corrections Officer	22.84	
27010 - Court Security Officer	22.91	
27030 - Detection Dog Handler	18.24	
27040 - Detention Officer	22.84	
27070 - Firefighter	21.65	
27101 - Guard I	16.09	
27102 - Guard II	18.24	
27131 - Police Officer I	31.71	
27132 - Police Officer II	35.24	
28000 - Recreation Occupations		
28041 - Carnival Equipment Operator	15.50	
28042 - Carnival Equipment Repairer	16.39	
28043 - Carnival Worker	12.77	

28210 - Gate Attendant/Gate Tender	17.69
28310 - Lifeguard	15.76
28350 - Park Attendant (Aide)	19.78
28510 - Recreation Aide/Health Facility Attendant	14.44
28515 - Recreation Specialist	24.51
28630 - Sports Official	15.76
28690 - Swimming Pool Operator	18.40
29000 - Stevedoring/Longshoremen Occupational Services	
29010 - Blocker And Bracer	25.92
29020 - Hatch Tender	25.92
29030 - Line Handler	25.92
29041 - Stevedore I	24.62
29042 - Stevedore II	27.25
30000 - Technical Occupations	
30010 - Air Traffic Control Specialist, Center (HFO) (see 2)	46.07
30011 - Air Traffic Control Specialist, Station (HFO) (see 2)	31.77
30012 - Air Traffic Control Specialist, Terminal (HFO) (see 2)	34.99
30021 - Archeological Technician I	19.11
30022 - Archeological Technician II	21.38
30023 - Archeological Technician III	25.30
30030 - Cartographic Technician	26.01
30040 - Civil Engineering Technician	25.97
30051 - Cryogenic Technician I	27.06
30052 - Cryogenic Technician II	29.88
30061 - Drafter/CAD Operator I	19.11
30062 - Drafter/CAD Operator II	21.38
30063 - Drafter/CAD Operator III	23.84
30064 - Drafter/CAD Operator IV	28.82
30081 - Engineering Technician I	16.30
30082 - Engineering Technician II	18.29
30083 - Engineering Technician III	20.46
30084 - Engineering Technician IV	25.37
30085 - Engineering Technician V	31.05
30086 - Engineering Technician VI	37.54
30090 - Environmental Technician	24.95
30095 - Evidence Control Specialist	24.43
30210 - Laboratory Technician	23.42
30221 - Latent Fingerprint Technician I	27.06
30222 - Latent Fingerprint Technician II	29.88
30240 - Mathematical Technician	26.02
30361 - Paralegal/Legal Assistant I	21.60
30362 - Paralegal/Legal Assistant II	26.76
30363 - Paralegal/Legal Assistant III	32.73
30364 - Paralegal/Legal Assistant IV	39.60
30375 - Petroleum Supply Specialist	29.88
30390 - Photo-Optics Technician	26.02
30395 - Radiation Control Technician	29.88

30461 - Technical Writer I	24.95	
30462 - Technical Writer II	30.53	
30463 - Technical Writer III	36.94	
30491 - Unexploded Ordnance (UXO) Technician I		29.28
30492 - Unexploded Ordnance (UXO) Technician II		35.43
30493 - Unexploded Ordnance (UXO) Technician III		42.46
30494 - Unexploded (UXO) Safety Escort	29.28	
30495 - Unexploded (UXO) Sweep Personnel	29.28	
30501 - Weather Forecaster I	28.82	
30502 - Weather Forecaster II	35.05	
30620 - Weather Observer, Combined Upper Air Or	(see 2)	23.84
Surface Programs		
30621 - Weather Observer, Senior	(see 2)	26.11
31000 - Transportation/Mobile Equipment Operation Occupations		
31010 - Airplane Pilot	35.43	
31020 - Bus Aide	14.87	
31030 - Bus Driver	19.37	
31043 - Driver Courier	16.39	
31260 - Parking and Lot Attendant	13.31	
31290 - Shuttle Bus Driver	18.02	
31310 - Taxi Driver	16.25	
31361 - Truckdriver, Light	17.36	
31362 - Truckdriver, Medium	17.61	
31363 - Truckdriver, Heavy	25.12	
31364 - Truckdriver, Tractor-Trailer	25.12	
99000 - Miscellaneous Occupations		
99020 - Cabin Safety Specialist	17.27	
99030 - Cashier	13.64	
99050 - Desk Clerk	14.51	
99095 - Embalmer	29.28	
99130 - Flight Follower	29.28	
99251 - Laboratory Animal Caretaker I	21.53	
99252 - Laboratory Animal Caretaker II	22.78	
99260 - Marketing Analyst	27.54	
99310 - Mortician	29.28	
99410 - Pest Controller	26.89	
99510 - Photofinishing Worker	15.39	
99710 - Recycling Laborer	21.20	
99711 - Recycling Specialist	24.07	
99730 - Refuse Collector	19.83	
99810 - Sales Clerk	14.91	
99820 - School Crossing Guard	19.83	
99830 - Survey Party Chief	24.32	
99831 - Surveying Aide	12.63	
99832 - Surveying Technician	19.33	
99840 - Vending Machine Attendant	24.07	
99841 - Vending Machine Repairer	28.52	

99842 - Vending Machine Repairer Helper

24.07

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors, applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is the victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

Note: Executive Order 13658 generally applies to contracts subject to the Service Contract Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025. The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: \$5.55 per hour, up to 40 hours per week, or \$222.00 per week or \$962.00 per month

HEALTH & WELFARE EO 13706: \$5.09 per hour, up to 40 hours per week, or \$203.60 per week, or \$882.27 per month*

*This rate is to be used only when compensating employees for performance on an SCA-covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 2 weeks paid vacation after 1 year of service with a contractor or successor; 3 weeks after 5 years, 4 weeks after 15 years, and 5 weeks after 25 years.

Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (Reg. 29 CFR 4.173)

HOLIDAYS: A minimum of fourteen paid holidays per year: New Year's Day, Martin Luther King Jr's Birthday, Washington's Birthday, Good Friday, Memorial Day,

Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, Day after Thanksgiving, Christmas Eve, and Christmas Day. (A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:

1) **COMPUTER EMPLOYEES:** This wage determination does not apply to any individual employed in a bona fide executive, administrative, or professional capacity, as defined in 29 C.F.R. Part 541. (See 41 C.F.R. 6701(3)). Because most Computer Systems Analysts and Computer Programmers who are paid at least \$27.63 per hour (or at least \$684 per week if paid on a salary or fee basis) likely qualify as exempt computer professionals under 29 U.S.C. 213(a)(1) and 29 U.S.C. 213(a)(17), this wage determination may not include wage rates for all occupations within those job families. In such instances, a conformance will be necessary if there are nonexempt employees in these job families working on the contract.

Job titles vary widely and change quickly in the computer industry, and are not determinative of whether an employee is an exempt computer professional. To be exempt, computer employees who satisfy the compensation requirements must also have a primary duty that consists of:

(1) The application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software or system functional specifications;

(2) The design, development, documentation, analysis, creation, testing or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;

(3) The design, documentation, testing, creation or modification of computer programs related to machine operating systems; or

(4) A combination of the aforementioned duties, the performance of which requires the same level of skills. (29 C.F.R. 541.400).

Any computer employee who meets the applicable compensation requirements and the above duties test qualifies as an exempt computer professional under both section 13(a)(1) and section 13(a)(17) of the Fair Labor Standards Act. (Field Assistance Bulletin No. 2006-3 (Dec. 14, 2006)). Accordingly, this wage determination will not apply to any exempt computer employee regardless of which of these two exemptions is utilized.

2) **AIR TRAFFIC CONTROLLERS AND WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY:** If you work at night as part of a regular tour of duty, you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am.

If you are a full-time employed (40 hours a week) and Sunday is part of your regularly scheduled workweek, you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime (i.e. occasional work on Sunday outside the normal tour of duty is considered overtime work).

**** HAZARDOUS PAY DIFFERENTIAL ****

An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close proximity to ordnance, explosives, and incendiary materials. This includes work such as screening, blending, dying, mixing, and pressing of sensitive ordnance, explosives, and pyrotechnic compositions such as lead azide, black powder and photoflash powder. All dry-house activities involving propellants or explosives. Demilitarization, modification, renovation, demolition, and maintenance operations on sensitive ordnance, explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.

A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with, or in close proximity to ordnance, (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands, face, or arms of the employee engaged in the operation, irritation of the skin, minor burns and the like; minimal damage to immediate or adjacent work area or equipment being used. All operations involving, unloading, storage, and hauling of ordnance, explosive, and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance, explosives, and incendiary material differential pay.

**** UNIFORM ALLOWANCE ****

If employees are required to wear uniforms in the performance of this contract (either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made the responsibility of the employee, all contractors and subcontractors subject to this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of \$3.35 per week (or \$.67 cents per day). However, in

those instances where the uniforms furnished are made of ""wash and wear"" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract, by the contractor, by law, or by the nature of the work, there is no requirement that employees be reimbursed for uniform maintenance costs.

**** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS ****

The duties of employees under job titles listed are those described in the ""Service Contract Act Directory of Occupations"", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

**** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE, Standard Form 1444 (SF-1444) ****

Conformance Process:

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e., the work to be performed is not performed by any classification listed in the wage determination), be classified by the contractor so as to provide a reasonable relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

- 1) When preparing the bid, the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).
- 2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the authorized representative of the employees involved, or where there is no authorized

representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees performs any contract work.

3) The contracting officer reviews the proposed action and promptly submits a report of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the U.S. Department of Labor, Wage and Hour Division, for review (See 29 CFR 4.6(b)(2)(ii)).

4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.

5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.

6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See 29 CFR 4.6(b)(2)(iii)).

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the ""Service Contract Act Directory of Occupations"" should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the wage determination. Remember, it is not the job title, but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1))."

Section XI - Representations, Certifications, and Other Statements of Bidders

Representations, Certifications, and Other Statements of Bidders

CAR 1352.215-72 Inquiries. (APR 2010)

OFFERORS MUST SUBMIT ALL QUESTIONS CONCERNING THIS SOLICITATION IN WRITING VIA EMAIL TO JAMIE.ROSALES@NOAA.GOV. QUESTIONS SHOULD BE RECEIVED NO LATER THAN 05/12/2026. Any responses to questions will be made in writing, without identification of the questioner, and will be included in an amendment to the solicitation. Even if provided in other form, only the question responses included in the amendment to the solicitation will govern performance of the contract.

(End of clause)

CAR 1352.233-70 Agency protests. (APR 2010)

(a) An agency protest may be filed with either: (1) The contracting officer, or (2) at a level above the contracting officer, with the appropriate agency Protest Decision Authority. See 64 FR 16,651 (April 6, 1999).

(b) Agency protests filed with the Contracting Officer shall be sent to the following address:
Jamie Rosales-Wold
Jamie.Rosales@noaa.gov

(c) Agency protests filed with the agency Protest Decision Authority shall be sent to the following address: Bianca Bueno
Bianca.Bueno@noaa.gov

(d) A complete copy of all agency protests, including all attachments, shall be served upon the Contract Law Division of the Office of the General Counsel within one day of filing a protest with either the Contracting Officer or the Protest Decision Authority.

(e) Service upon the Contract Law Division shall be made as follows: U.S. Department of Commerce, Office of the General Counsel, Chief, Contract Law Division, Room 5893, Herbert C. Hoover Building, 14th Street and Constitution Avenue, NW., Washington, DC 20230. FAX: (202) 482-5858.

(End of clause)

CAR 1352.233-71 GAO and Court of Federal Claims protests. (APR 2010)

(a) A protest may be filed with either the Government Accountability Office (GAO) or the Court of Federal Claims unless an agency protest has been filed.

(b) A complete copy of all GAO or Court of Federal Claims protests, including all attachments, shall be served upon (i) the Contracting Officer, and (ii) the Contract Law Division of the Office of

the General Counsel, within one day of filing a protest with either GAO or the Court of Federal Claims.

(c) Service upon the Contract Law Division shall be made as follows: U.S. Department of Commerce, Office of the General Counsel, Chief, Contract Law Division, Room 5893, Herbert C. Hoover Building, 14th Street and Constitution Avenue, NW., Washington, DC 20230. FAX: (202) 482-5858.

(End of clause)

RFO 52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. (FEB 2016) (Deviation JAN 2026)

(a) The Government will not enter into a contract with any corporation that-

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that-

(1) It is ___ is not ___ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is ___ is not ___ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

RFO 52.212-1 Instructions to Offerors-Commercial Products and Commercial Services. (SEP 2023) (Deviation JAN 2026)

NOTICE TO OFFERORS: Instructions for submitting quotations under this request for quote must be followed. Failure to provide all information to aid in the evaluation may be considered non-responsive. Offers that are non-responsive may be excluded from further evaluation and rejected without further notification to the offeror.

1. Submit PDF or Microsoft Word format quotations are required and can be sent to Jamie Rosales via email Jamie.Rosales@noaa.gov at or before the time specified in the solicitation. Quote documents shall include signed copies of the SF 18 and SF 30(s) to acknowledge the solicitation and any applicable amendments.
2. Offeror shall have an active registration in the System for Award Management (SAM found at <https://sam.gov/content/home>) in order to provide a quote and be eligible for award. Must provide their UEID/CAGE CODE with their quote.
3. Offerors shall assume that the Government has no prior knowledge of them or their capability.
4. Offerors must provide all evaluation criteria in accordance with RFO 52.212-2. Offerors who do not provide all evaluation criteria may not be considered.

1. **Technical Approach and Capability. Provide a detailed description of the company's experience performing similar services. A detailed technical approach write-up describing how the Offeror will perform this service is required to be submitted with the quote regardless of whether a site visit was made or not. The technical approach write-up must not be a reiteration of the Statement of Work, but how your company plans on performing the tasks listed in the attached Statement of Work. (i.e. performance checklists, anticipated number of employees, anticipated hours at the facility and/or confirmation of supplies being provided, etc.)**
2. **Past Performance. Quote shall include at least two references from at least two separate contracts for similar and relevant recent services within the past two years including the name, phone number, full address, and e-mail address of the reference to demonstrate the offeror's capability to successfully perform the services listed in the Statement of Work.**
3. **Price.**

RFO 52.212-2 Evaluation-Commercial Products and Commercial Services. (NOV 2021) (Deviation JAN 2026)

Offers will be evaluated based on price and the factors set forth in paragraph (a).

The evaluation will consider the Non-Price Technical Solution (Technical Approach and Past Performance) to be significantly more important than price. However, as quotes are determined to be more equal in the non-price evaluation factors, price becomes more important and may become the determining factor for award. If, at any stage of the evaluation, all vendors are determined to have submitted equal, or virtually equal, Non-Price Technical Solutions, price could become the factor in determining which vendor will receive the award.

The Government intends to evaluate the quotes and award a purchase order based on the Offeror's initial quote; therefore, the Offeror's initial quote should contain the Offeror's best terms from a Non-Price Technical Solution and price standpoint. However, the Government reserves the right to have communications with quoters, if necessary.

The Government reserves the right not to award a purchase order depending on the quality of the

quote(s) submitted and the availability of funds. Furthermore, the Government may waive informalities and minor irregularities or omissions in quotes received.

The Government may make award to other than the lowest-priced Offeror or the Offeror with the highest technical rating if the Contracting Officer determines that to do so would result in the best value to the Government.

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered.

Paragraph (a) is hereby completed as follows: Evaluation will be based on the following:

1. Technical Approach and Capability.

The Offeror's overall technical approach will be evaluated to assess the Government's level of confidence in the Offeror's understanding of, approach to, and ability to successfully perform the requirements as described in the Statement of Work.

2. Past Performance.

The Offeror's past performance on related contracts will be evaluated to determine, as appropriate, successful performance of contract requirements, quality and timeliness of delivery of goods and services, cost management, communications between contracting parties, proactive management and customer satisfaction. The Government will use its discretion to determine the sources of past performance information used in the evaluation, and the information may be obtained from references provided by the Offeror, the agency's knowledge of Offeror performance, other government agencies or commercial entities, or past performance databases, and will be based on responsiveness, quality, and customer services.

Offerors lacking relevant past performance history, or for whom past performance information is either not available or has not been submitted to the Government, will receive a neutral rating for past performance.

3. Price.

The Government will evaluate the price quote for completeness and reasonableness in relation to the RFQ requirements. Quoted prices must be entirely compatible with the Non-Price Technical Solution.

The Government intends to award a trade-off, single firm fixed-price purchase order on an all or none basis with payment terms of Net 30.

(b) Options. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

RFO 52.217-5 Evaluation of Options. (JUL 1990) (Deviation JAN 2026)

Except when it is determined in accordance with FAR 17.206 (b) not to be in the Government's best interests, the Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement.

(End of Provision)

This includes options under FAR clause 52.217-8, Option to Extend Services, which applies to this solicitation. Evaluation of options will not obligate the Government to exercise the option(s).

RFO 52.252-1 Solicitation Provisions Incorporated by Reference. (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): <https://www.acquisition.gov/browse/index/far>

(End of provision)

RFO 52.252-5 Authorized Deviations in Provisions. (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR chapter 1) provision with an authorized deviation is indicated by the addition of (DEVIATION) after the date of the provision.

(b) The use in this solicitation of any Commerce Acquisition Regulation (48 CFR chapter 1352) provision with an authorized deviation is indicated by the addition of (DEVIATION) after the name of the regulation.

(End of provision)